
**IN THE FOURTH JUDICIAL DISTRICT COURT
IN AND FOR UTAH COUNTY, STATE OF UTAH**

STATE OF UTAH,

Plaintiff,

vs.

TYLER JAMES ROBINSON,

Defendant.

**RULING AND ORDER DENYING
DEFENDANT TYLER JAMES
ROBINSON'S MOTION TO STAY
PENDING INTERLOCUTORY
APPEAL**

Case No. 251403576

Judge Tony F. Graf, Jr.

I. INTRODUCTION

Before the Court is Defendant's Motion to Stay Pending Interlocutory Review (Dkt. 561). Defendant seeks to stay all further proceedings in this capital case, specifically the preliminary hearing scheduled for the week of July 6, 2026, pending the Utah Supreme Court's disposition of his Petition for Permission to Appeal from an Interlocutory Order. The State filed an Opposition to the Motion (Dkt. 575), and Defendant subsequently filed a Reply (Dkt. 579). Having considered the parties' briefing, the factual record, and the relevant authorities, the Court issues the following Ruling and Order.

II. PROCEDURAL AND FACTUAL BACKGROUND

Defendant is charged with the aggravated murder of Charlie Kirk, a capital felony offense. The media interest in this case is extraordinary within the State of Utah. Due to this intense public interest, Defendant previously filed a Motion to Exclude Still Photographers, TV Cameras and Microphones from the Courtroom, seeking a categorical ban on electronic media coverage during all proceedings.

On May 8, 2026, this Court issued its Camera Ruling (Dkt. 535), denying Defendant's request for a blanket ban and concluding that, under Utah Rule of Judicial Administration 4-401.01, requests for electronic media coverage must be evaluated on a proceeding-by-proceeding basis rather than through a categorical prohibition. The Court also established procedures designed to provide advance notice of media requests and an opportunity for the parties to be heard before any such request is decided.

Subsequently, on May 29, 2026, Defendant filed a Petition for Permission to Appeal from an Interlocutory Order with the Utah Supreme Court, challenging the Camera Ruling on state and federal constitutional grounds. On June 6, 2026, the Supreme Court issued an order requesting that the State and various media organizations file responses to Defendant's petition within fourteen days.

Additionally, on June 1, 2026, this Court denied Defendant's motion to close portions of the upcoming preliminary hearing and seal exhibits, concluding that Defendant had not demonstrated a realistic likelihood of prejudice sufficient to justify closure, particularly where much of the information at issue was already publicly available.

III. LEGAL STANDARD

The parties dispute the precise legal standard governing a motion to stay pending interlocutory review. Defendant argues that the granting of a stay lies within the inherent and discretionary powers of the court, varying "according to the requirements of each individual case," citing *Lewis v. Moultrie*, 627 P.2d 94, 96 (Utah 1981). In addition Defense argues Rule 8 of the Utah Rules of Appellate Procedure, which requires him to request a stay in the trial court before

seeking a stay from the Utah Supreme Court. UT R. App. P 8(a)(2) (“Before seeking relief in the appellate court under this rule, a party must first seek the requested relief in the trial court . . .”).

Conversely, the State argues that under Rule 8(c)(2) of the Utah Rules of Appellate Procedure, a movant must demonstrate: (A) a likelihood of prevailing on appeal; (B) a likelihood of irreparable harm to the movant outweighing the harm to any other party; and (C) that the stay is not adverse to the public interest. Defendant contends that the factors contained in Rule 8(c) govern the waiver of a bond or security requirement and do not establish the substantive standard for granting a stay itself.

The Court concludes that regardless of whether the motion is analyzed under the discretionary authority recognized in *Lewis* or under the factors identified in Rule 8(c), the result is the same because Defendant has not established either a sufficiently concrete threat of irreparable harm or that the balance of equities favors a stay.

IV. ANALYSIS

A. Irreparable Harm and Potential Prejudice

Defendant argues that proceeding with the July preliminary hearing while his petition remains pending will cause irreparable harm to his constitutional rights to a fair trial and an impartial jury. Specifically, Defendant relies on the expert opinion of Dr. Christine Ruva, who opines that electronic media coverage of the preliminary hearing may expose prospective jurors to inadmissible hearsay evidence and create unconscious bias. Defendant further relies on *Sheppard v. Maxwell*, 384 U.S. 333 (1966), *State v. James*, 767 P.2d 549 (Utah 1989), and *Hollingsworth v.*

Perry, 558 U.S. 183 (2010), arguing that once a proceeding is publicly broadcast, any resulting prejudice cannot be undone.

The Court takes Defendant's concerns seriously. The potential impact of extensive media coverage in a capital case is neither hypothetical nor trivial. The Court further recognizes that, unlike many forms of pretrial prejudice, widespread dissemination of information through modern electronic media may be difficult or impossible to fully reverse once it occurs. The question presently before the Court, however, is whether the record establishes a sufficiently concrete and imminent risk of prejudice to justify staying all proceedings while interlocutory review remains pending.

The Court concludes that the asserted threat of prejudice has not yet been shown on the present record to be sufficiently concrete to justify the extraordinary relief requested. The Court does not minimize Defendant's concerns regarding publicity in a case of this magnitude. Indeed, the Court has previously recognized that media attention surrounding these proceedings is extraordinary and that dissemination of preliminary-hearing evidence presents challenges not ordinarily encountered in most criminal cases.

Nevertheless, extensive publicity does not, standing alone, establish that an impartial jury cannot ultimately be selected. Courts have long addressed highly publicized prosecutions through established procedural safeguards, including expanded jury pools, detailed juror questionnaires, individualized voir dire, venue-related remedies where appropriate, and careful judicial supervision of the jury-selection process.

As the United States Supreme Court observed in *Nebraska Press Ass'n v. Stuart*, 427 U.S. 539, 554 (1976), pretrial publicity does not inevitably lead to an unfair trial, and predictions

regarding its ultimate impact are often uncertain. Likewise, "prominence does not necessarily produce prejudice, and juror impartiality ... does not require ignorance." *Skilling v. United States*, 561 U.S. 358, 398 (2010).

In its June 1, 2026 Order Denying Closure, this Court concluded that Defendant had not demonstrated a realistic likelihood of prejudice sufficient to justify closure of portions of the preliminary hearing. Should concerns regarding prejudice arise as the case progresses, this Court retains broad authority to employ traditional safeguards to protect Defendant's constitutional rights, including expanded venire procedures, comprehensive juror questionnaires, individualized voir dire, changes of venue where warranted by law, and other remedies authorized by law. See *State v. Allgier*, 2011 UT 47, 258 P.3d 589.

Moreover, no media organization has yet filed a request for electronic media coverage of the July preliminary hearing, and the Court has not been called upon to determine whether such coverage will be permitted. Accordingly, the asserted injury presently depends upon future events that have not yet occurred, including whether any request for electronic media coverage will be filed and, if so, how the Court will rule on such a request. At this juncture, the Court cannot assess those contingencies with sufficient certainty to conclude that a stay is necessary.

The Court recognizes Defendant's argument that the alleged injury arises not merely from the possibility of a future media request, but from the operation of the framework established in the Court's May 8, 2026 Order while appellate review remains pending. The Court has carefully considered that concern. However, because any request for electronic media coverage remains subject to case-specific review and because no determination regarding coverage of the preliminary hearing has yet been made, the Court concludes that the asserted injury remains

contingent rather than immediate. On the present record, the possibility of future electronic media coverage does not establish a sufficiently concrete basis for staying all proceedings pending interlocutory review.

The Court's denial of a stay should not be understood as a determination that Defendant's concerns lack merit. Rather, the Court concludes only that the current record does not establish that such concerns have matured into a concrete and immediate threat requiring present intervention. Given the procedural safeguards available to ensure the selection of an impartial jury, Defendant has not established irreparable harm warranting a stay at this time.

B. Harm to the State and the Victim Representative

In balancing the equities, the Court must also consider the harm that a stay would impose upon other interested parties.

The State argues that delay may impair the orderly presentation of evidence, increase the risk of faded memories, and affect witness availability. *See Barker v. Wingo*, 407 U.S. 514, 519–21 (1972). The Court finds those concerns legitimate and entitled to consideration.

Additionally, the victim representative has formally asserted her right to a speedy disposition of this matter. Under the Utah Constitution and Utah Code § 77-38-7(2), victims possess important rights to proceedings free from unreasonable delay, and courts are obligated to consider those interests when exercising discretion in criminal cases.

The Court acknowledges Defendant argument concerning victims' rights and defendant's constitutional protections. However, because the Court has concluded that Defendant has not demonstrated a sufficiently concrete threat to those protections on the present record, the Court

finds that the interests favoring the continued progression of the case weigh against imposing a stay.

C. Likelihood of Prevailing on Appeal and the Public Interest

The Court continues to adhere to the reasoning set forth in its May 8, 2026 Camera Ruling and its interpretation of Utah Rule of Judicial Administration 4-401.01. At the same time, the Court recognizes that reasonable jurists may disagree regarding the proper application of that rule in a case receiving this degree of public attention.

The Court further recognizes that the Supreme Court's request for responses indicates that Defendant's petition presents substantial issues warranting careful appellate consideration. The Court does not regard the Supreme Court's request as a routine procedural event and acknowledges that the issues raised are of sufficient significance to merit serious review. The Court expresses no opinion regarding whether interlocutory review ultimately should be granted. The existence of a substantial legal question, however, remains distinct from the separate question presently before this Court—whether Defendant has demonstrated that a stay is presently necessary pending further review.

The Court remains persuaded that the procedures established in its May 8, 2026 Order are consistent with Rule 4-401.01. Any future request for electronic media coverage will be evaluated on the specific record then before the Court, after affording the parties a full opportunity to be heard pursuant to the procedures previously established.

Finally, the Court concludes that the public interest presently favors allowing this matter to proceed in the ordinary course. The public possesses a substantial interest in the fair, orderly,

and timely administration of criminal justice. The Court further recognizes that public confidence in the judicial process depends both upon transparency and upon the preservation of constitutional trial rights. The Court remains committed to safeguarding both interests throughout these proceedings. Staying the preliminary hearing while the Supreme Court considers whether to grant discretionary interlocutory review would result in additional delay despite the absence of a presently demonstrated need for such relief.

V. CONCLUSION

The Court recognizes the seriousness of Defendant's concerns and the significance of the issues presently before the Supreme Court. The Court further recognizes that concerns regarding pretrial publicity and electronic media coverage implicate important constitutional values and warrant careful judicial attention.

Nevertheless, the potential prejudice identified by Defendant has not yet matured into a concrete and immediate threat requiring intervention in the form of a stay. Established procedural safeguards remain available to protect Defendant's right to a fair trial should future circumstances warrant their use.

By contrast, a stay would impose immediate and concrete burdens upon the continued progression of this case, including the interests of the State, witnesses, and the victim representative, as well as the broader public interest in the timely administration of justice.

Nothing in this Order should be construed as foreclosing Defendant from renewing an appropriate request for relief should future developments materially alter the circumstances presently before the Court. Should future developments demonstrate a materially different level of

publicity, media exposure, juror contamination risk, or other circumstances affecting Defendant's fair-trial rights, the Court will not hesitate to revisit appropriate protective measures.

Likewise, nothing in this Order predetermines how the Court will rule on any future request for electronic media coverage of a particular proceeding. Accordingly, Defendant has not established that a stay of proceedings is presently necessary or appropriate.

IT IS HEREBY ORDERED that Defendant's Motion to Stay Pending Interlocutory Review is respectfully DENIED.

Dated this 12th day of June, 2026.

BY THE COURT.



Judge Tony F. Graf, Jr.
District Court Judge



CERTIFICATE OF NOTIFICATION

I certify that a copy of the attached document was sent to the following people for case 251403576 by the method and on the date specified.

MANUAL EMAIL: KATHRYN NESTER KATHY@NESTERLEWIS.COM

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06/12/2026

/s/ SHIRLEY MOLINA

Date: _____

Signature